

“Rebirthing” the Family Court System

Some activists have proposed a three-pronged approach to reforming the family court system: new laws, new policies for law guardians and Child Protective Service (CPS) workers, and a new mind-set to be instilled throughout the system. New laws can help to prevent the victimization of protective mothers in the courts; new policies can make law guardians and CPS agencies less likely to abuse their authority. But those familiar with the system believe that even substantial reform of laws and policies will not succeed unless they are accompanied by genuine changes in the attitudes of the participants. For instance, in 1997, at a special meeting at the White House Women’s Office, attorney and domestic violence activist Joan Zorza¹ spoke with conviction about the need for a “radical” shift in the attitudes and perceptions of judges, law guardians, mental health experts, and others connected with the system.

What would such a “radical” change involve? Essentially it would require a rethinking of all the basic elements of the family courts and their auxiliaries—the rebirth of the entire system. That is, certain fundamental beliefs held by family court judges and their cadre of auxiliaries must be drastically revised. We examine some of these fundamental concepts next.

PARENS PATRIAE

First, it is necessary for the family courts and their auxiliaries to rethink the implications of the doctrine known to lawyers as *parens patriae*. Under English common law, this doctrine, which literally means “the father of his country,” conferred on the monarch the power to assume parental responsibility for any child (or someone else suffering a “disability”) within his kingdom.²

This power (now assigned in democracies to the state, not to a king),³ gives the state the authority to act in lieu of a parent in certain situations defined by law. It is this doctrine on which family courts rely when they make decisions concerning child custody “in the best interest of the child,” or when they remove a child from an abusive home. As one legal treatise explains: “The state as *parens patriae* is supreme guardian of all minors within its jurisdiction . . . [the] state’s equity courts . . . may deprive either or both parents of custody and place minors in custody of a third person or institution regarding best interest of minors.”⁴

The doctrine has the obvious benefit of providing protection for children whose interests are not being adequately protected by a parent or guardian. But it has spawned the notion among family court judges and related personnel that *they*—not parents—are ultimately responsible for the child care arrangement of any family that has once been subject to family court jurisdiction or to the intervention of a state agency. As a New Jersey court declared as far back as 1942: “The natural right of a father [parent] to the custody of his child is not an absolute property right, but rather a trust reposed in the father [parent] by the state as *parens patriae*.”⁵ Thus, over sixty years ago, the idea had already taken root that the state, in some sense, is the true parent, while mothers and fathers hold only a “trust” that the state has agreed to grant them.

That idea has become dogma in today’s family courts. A New York family court in 1981 stated bluntly that because of *parens patriae* the state is a “superparent.”⁶ Two years later, a Maryland court amplified

the idea still further, in language that Americans unfamiliar with matrimonial litigation might be surprised to find in the mouth of an official inside the United States:

The authority by which the equity courts may safeguard the welfare of children emanated from the State's posture as *parens patriae* In this paternalistic role, the State imposes the obligation upon the parents to maintain, care for and protect their children. The State may regulate this custodial relationship whenever necessary . . . and virtually without limitation when children's welfare is at stake.⁷

Note that the court used the word "welfare" instead of "safety." This broad understanding of the doctrine can have far-reaching consequences. It is one thing to protect children who demonstrably need protection. It is quite another for courts, social service agencies, law guardians, and court-appointed mental health professionals to usurp the authority of a mother against whom no valid charges can be made and to impose their views, preferences, theories, and politics on her and her children—views that emphasize "a child's need to love both parents" (read "a father's rights over children of a divorced spouse") or the emotional "dangers" of a highly protective mother. When courts and social service agencies regard this as their proper function, their protective functions edge toward totalitarian powers, and social workers' armchair psychology becomes law.

To put the danger into clearer perspective, let us take a moment to examine how a family court judge resolved a visitation dispute that involved, not protective mother backlash, but an issue that (like today's cases involving protective mothers) combined popular misunderstanding with prejudice posing as psychology. *Matter of J. S. & C.*⁸ concerned a dispute over the rights of a divorced homosexual father to visit his three children in 1974—at a time when homosexuality was no more acceptable to the general public than sex abuse allegations against fathers are

today.⁹ The children’s mother sought to restrict the father’s visitation severely; in particular, she was opposed to overnight visits between the father and any of the children. She also insisted that the father’s lover, who lived with him, should not be present when the children visited. There was no evidence of abusive behavior on the father’s part; in fact, it was not even claimed that he was in any way unfit as a parent. The children had no objections to seeing him. It is difficult to see, therefore, how the father could have posed a threat to the children’s well-being. However, a New Jersey family court, after hearing testimony from the mother’s expert, Richard A. Gardner—later to be notorious for his disastrously biased writings on child sexual abuse allegations—agreed with the mother and imposed serious restrictions on the father’s visitation, including a ban on overnights and a rule that the father’s lover could not be at home when the children visited.

The steps by which the court reached this conclusion are of great significance for anyone concerned about protective mother backlash. First, invoking *parens patriae*, the court rejected the father’s claim that the state could interfere with his parental rights only if he “had impaired the safety or physical or mental health of the children.”¹⁰ (How often have protective mothers tried to assert the same claim, with no more success!) Rather, the court (using the expansive reading of *parens patriae* we have explored above) stated that “the parent’s right to raise his child as he sees fit is *secondary to the State’s power* to ensure the health *and welfare* of the child” (emphasis added). Thus, in effect, the court insisted on its power to substitute its own notion of the children’s needs for that of a parent. Next, the court accepted Dr. Gardner’s contention that the father’s deep commitment to gay rights activism—“an obsessive preoccupation,” Gardner had called it, although no one else found it “obsessive”—could “engender homosexual fantasies causing confusion and anxiety which would in turn affect the children’s sexual development.” How Gardner reached this conclusion is difficult to tell, and it was contradicted by two other expert witnesses. But the judge—without

citing any evidence beyond Gardner's vague conclusions—claimed that the father's homosexuality “holds the possibility of inflicting severe mental anguish and detriment on three innocent children.” He even compared the father to a “bank robber” because he allegedly advocated violations of New Jersey's sodomy statute. (Actually, the father had advocated *changing* the statute, not violating it, but who was counting?)

This decision illustrates all the elements of the *parens patriae* doctrine that have proven so dangerous to protective mothers. First, it shows how family courts interpret their right to “protect” children more broadly than state statutes (and Supreme Court precedents) appear to contemplate. Rather than stepping in only when a child is in danger—the original purpose of the laws that allow the state to override parental rights—family courts intervene to enforce what they believe is “good” for children. (And too many family court judges believe it is not “good” for fathers to be accused of abuse.) Second, this case shows how a family court judge is willing to invoke his powers under *parens patriae* on very scanty evidence, once his prejudices are aroused. (And the popular myth of the vengeful, hysterical ex-wife heaping accusations on her former spouse is one of today's most stubborn prejudices.) Third, it shows how quickly a family court will accept junk science to lend support to a conclusion it has already reached.

This, then, is what has happened to a doctrine originally intended only to protect the helpless. To make matters worse, the doctrine of *parens patriae* has spilled out of courtrooms and into the ranks of family court auxiliaries—particularly the social workers and mental health professionals who are called on to make judgments about the welfare of families involved in litigation. One protective mother after another has found a bureaucrat making the decisions for *her* children in matters that she has always believed (correctly) are secured to her by right. Caseworkers for CPS can and do remove children from their homes without obtaining competent evidence that the children are in danger. Law guardians can and do seek drastic remedies when they feel unable to

control how a protective mother deals with her children. Even social workers who deal with such families under the auspices of a court order take it on themselves to decide what subjects a mother should discuss with her child during visits, or that she should not whisper—or even how often she should tell the child she loves her. (Examples of such conduct have been discussed in Part II of this book.)

Thus, in today’s family court system, the doctrine of *parens patriae* has taken on proportions that seriously threaten a more basic legal principle: the limitations on state power carved out by the Bill of Rights. This is so, because the right of parents to live with, and make decisions for, their children has constitutional status, and the deprivation of such rights without proper legal procedure wholly violates the right to “due process of law” contained in the Fourteenth Amendment. 11

So, it is not reckless radicalism to demand the “rebirthing” of the fundamental mind-set of the family court system. This system must recognize both the legal and the prudential limitations inherent in any state-sponsored intrusions into private life. It must seriously rethink its claim to being a “superparent” with powers beyond those of mothers. An attitude that is contrary to constitutional law—even though it grows out of the well-known doctrine of *parens patriae*—must be reborn as something wiser.

REALITIES OF SEX ABUSE REPORTS

Judges and family court auxiliaries must also rethink the myth that women frequently, perhaps usually, make false reports of sex abuse to seek revenge against their spouse. This belief is deeply entrenched in the matrimonial bar and on the bench, although it flies in the face of published studies, as we have seen. It is therefore essential that everyone connected with family court litigation be educated about sexual abuse of children and the facts about sex abuse reports.¹²

There is disturbing evidence that lawyers and judges professionally responsible for handling charges of child sex abuse are strikingly ignorant of the facts concerning sex abuse reports. A prominent New York matrimonial attorney told one of us that most allegations of child sex abuse during divorces were fabricated by mothers “to get an advantage”—even though a study commissioned by the American Bar Association itself concluded that such fabrications are “rare.” He even claimed that a professional evaluator’s opinion that abuse had occurred was valueless because such validators were “feminists who had issues with men.” Similarly, and as discussed in Chapter 1, an appellate judge told investigative reporter Karen Winner, “You know what happens in every matrimonial case now? They go to the lawyer and the lawyer says, You know we’re going to holler sexual abuse. Everything stops That’s become the password now Holler sexual abuse and every goddamn thing slows down. It’s getting to be a disaster now because that’s the password now.”¹³ As we have learned, reality is very different: a mother who suspects sexual abuse is actually more likely to be told by her attorney not to mention the suspicion to anyone, and statistics show that women stand to lose more than they stand to gain by making such allegations.¹⁴ It is painful to report that the family court system is unaware of the basic facts pertaining to one of its most sensitive functions. But that is the truth. Education is needed to correct it.

RECOGNIZING THE IMPORTANCE OF FAMILY COURT

Judges and lawyers must recognize the paradox that family courts wield awesome power over families yet are generally looked down on within the legal profession. Many lawyers see family courts as a “stepchild” of the court system, lacking the prestige of criminal courts or commercial litigation. It is no secret that many judges are ashamed to sit in family courts, seeing the position of family judge merely as a stepping-stone to

another court, at best. And yet these courts are handling more and more cases involving decisions that can literally, and radically, change lives. 15 We cannot demand so much from our family courts without according them commensurate respect. And respect for the family courts must begin with family court personnel. They must realize the power they hold and conduct themselves with the restraint, dignity, and respect for legal process that such power demands.

MISUSE OF MENTAL HEALTH LABELS

Family courts must seriously rethink their freedom with labels such as “emotional disorder,” “thought disorder,” and the like when it comes to the treatment of protective mothers who clearly do not suffer from mental illness—that is, not anywhere but in the family court system. Serious mental illness affects only about 1 percent of the population, and those who are affected are not likely to marry. It is thus hardly reasonable to suppose that a substantial portion of the mothers who enter the family court system suffer from mental illness so severe that it prevents them from being fit parents. Yet this is exactly what the family courts are decreeing with respect to protective mothers—time after time, in case after case, once a court has concluded that the mother cannot prove that the abuse she reported actually occurred (prove it to the court’s satisfaction, that is), the court goes on to label the mother “ill” according to one of the many special theories that have sprouted in the family court system. This makes no more sense than claiming that everyone who experiences heart palpitations has heart disease. The temptation to convert an inquiry into facts about alleged abuse into armchair psychologizing about the mother who made the abuse report must be resisted. Judges must not shirk their decision-making responsibilities by falling back on the “expertise” of a mental health professional, who often as not is really giving the judge a rationale for his own preconceived opinion.

DUE PROCESS

Lawyers in family courts must learn to demand—and expect—the same standards in legal procedure, ethics, and civil rights to which lawyers have grown accustomed in other courts. As we have seen, violations of due process rights are by no means uncommon in family courts. What is uncommon is for matrimonial attorneys to complain about such violations; and it is even more uncommon for the courts to respond to such complaints when they are made.

Changes of the magnitude and scope suggested in this chapter will necessarily involve the entire family court system. As the previous sections of this book have demonstrated, every level of that system is in need of serious reform. In the two chapters that follow, we propose a number of reforms designed to improve the functioning of the family courts and their auxiliary agents and to minimize the injustices that the system has inflicted on protective parents. Chapter 10 presents a range of ideas for judicial reform. Chapter 11 addresses reforms aimed at court “auxiliaries”: law guardians, social service agencies, and court-appointed mental health experts. It must be stressed, again, that reforming parts and pieces of the system will not change much unless the participants shake off the attitudes, assumptions, and unquestioned habits that have made family courts places no mother wants to be.